

Virtual Office Website Best Practises

VOW (Virtual Office Website) RESO (Real Estate Standards Organization) Web API

THE FOLLOWING SUMMARIZES THE OBLIGATIONS OF MEMBERS AND AVPs AND SETS OUT BEST PRACTICES FOR MEMBERS AND THEIR AVPs IN THE OPERATION OF THEIR VOW.

This document is provided for guidance purposes and does not alter the terms of PropTx's Authorized User Agreement ("**AUA**"), PropTx's MLS® Rules and Policies or the agreements entered into for access to PropTx's VOW / IDX Data Feeds.

VOW

A **VOW** (Virtual Office Website) is a secure password-protected Internet website (or APP), or an area of a Member's website, through which a Member is able to provide real estate brokerage services to consumers.

Members have the option of electing an Affiliated VOW Partner (AVP) as a technical service provider to access the VOW RETS system on the Member's behalf to assist the Member in its provision of residential real estate brokerage services. The AVP must be designated by the Member on the PropTx VOW Data Feed Agreement, as well as be a direct party to that Agreement.

Please see **Appendix A** as to specific technical aspects related to the operation of the VOW and Archive Data requests.

[Note: Available and Unavailable Residential data for VOWs is now offered by PropTx. Commercial Available data will also be available for VOWs. See details in **Appendix A]**

Applying for VOW Data Feed Access

- 1) Each VOW operated by a Member must be approved by the Broker of Record who is to execute the VOW Data Feed Agreement on behalf of the Brokerage before access can be approved (VOW Data Feed Agreement, section 6.3(g);

- 2) Members are only permitted to have access to the VOW Data Feed after completing all necessary agreements and being approved by PropTx; no access is to be provided to or used by a Member, prior to Member receiving specific approval by PropTx;
- 3) When a Member applies for VOW Data Feed access, PropTx staff review all agreements between the Member and PropTx before approval is processed;
- 4) Member must be in full compliance with all obligations and agreements in respect of VOWs prior to receiving VOW Data Feed access;
- 5) An AVP will only be granted access once all PropTx Agreements have been completed by the Member and the AVP. Each Member is liable for their AVP's use of PropTx content (VOW Data Feed Agreement, sections 6.1 and 11.1);
- 6) When a Member changes AVP, or seeks a new VOW Data Feed using a new AVP not previously granted access to PropTx, an email is sent to the new AVP requesting confirmation of organization name, address, contact person, contact email, phone number and a brief description of the service being provided to Member, before approval will be granted (VOW Data Feed Agreement ss. 6.4(i) and 5.4);
- 7) New AVPs will also be required to provide specific technical information and will be provided with technical details related to accessing PropTx's VOW/IDX Data Feed;
- 8) A Member applying for access to the VOW/IDX Data Feed cannot use an URL that is already in use for an existing VOW/IDX feed from another provider – all old data feeds for the same URL are required to be disabled prior to processing a PropTx VOW/IDX data access request;
- 9) No AVP and/or Member shall have two sets of access codes for the same feed (VOW Data Feed Agreement, ss. 6.2(c) and 6.2(d));
- 10) Member and AVP are to confirm that the VOW/IDX access is only to be used for a VOW (either website or App) operated for the Member's real estate brokerage which must be branded only to that Member and confirm that neither the feeds nor their content can be used otherwise or redirected elsewhere (VOW Data Feed Agreement, ss. 3.2 and 6.2(a));
- 11) PropTx does not recommend or suggest a preference toward any particular AVP;

- 12) AVPs that have access to PropTx VOW/IDX Data Feeds on behalf of one Member, cannot use that access or its contents to create any products or services for the AVP, or to provide access to other realtors or Members; AVP's access to PropTx's VOW/IDX Data Feeds and access to a Member is only provided after all agreements are executed and specific approval is granted by PropTx (VOW Data Feed Agreement, section 3.2);
- 13) PropTx VOW/IDX feeds cannot be accessed by Members, or AVPs, for purposes other than those directly related to the Member's business of providing residential real estate brokerage services to its customers (VOW Data Feed Agreement ss. 3.2 and 4.1);
- 14) VOW/IDX Data Feed Agreements completed by phone, have the same requirements as online agreements, are verified by email, and all terms are binding on Members in the same manner as agreements completed on line, verbally, by email, or by fax (VOW Data Feed Agreement ss. 3.2 and 4.1);
- 15) 30 days after a Member VOW Data Feed is approved for access, PropTx staff will review the Member website to see if the site is in general compliance with the VOW Data Feed Agreement (VOW Data Feed Agreement s. 5.2);;
- 16) Any changes in contact information for an AVP acting on behalf of a Member must be updated to PropTx by correspondence on AVP company letterhead with full current contact information and with an authenticated signature (VOW Data Feed Agreement, section 14.1 and Acknowledgement and Agreement);
- 17) If an AVP changes ownership, there is a change of control of the AVP, or the AVP changes its business operations (e.g., is bought out by another company by shares, assets, business merger, changes name, its business operations are not limited to AVP services, etc.) then all Agreements with PropTx and AVP must be immediately replaced with new Agreements; any prior Agreements with PropTx will lapse as they are non-transferrable and cannot be assigned (VOW Data Feed Agreement, section 14.7).

Summary of Specific Obligations When Operating a VOW

- 18) As noted above, the VOW Data Feed can only be used in a manner that is directly related to the business of providing residential real estate brokerage services and cannot be used for any other business or purpose (VOW Data Feed Agreement, ss. 3.2 and 4.1);

- 19) PropTx content cannot be exploited, commercialized, monetized, sold, transferred, licensed or redirected in any manner (VOW Data Feed Agreement, ss. 6.2(f) and 7.1);
- 20) A Member operating a VOW must adhere to each of the following:
- (i) listings transmitted through a VOW Data Feed that are to be displayed are not to be changed, altered or merged with listings from any other source (VOW Data Feed Agreement, section 6.2)(f) 6.3(a));
 - (ii) consumer searches must be limited to a maximum results of 100 listings (VOW Data Feed Agreement, section 6.3(b));
 - (iii) the listing brokerage of each listing must be clearly identified in all views and not visually separated (e.g., in different font and color) from the other listing detail (VOW Data Feed Agreement, section 6.3(c));
 - (iv) any listing from other sources must be clearly identified, along with its source (e.g., not displayed along with listings from the VOW Data Feed such that the source is not readily identifiable) (VOW Data Feed Agreement, section 6.2)(f) and 6.3(d));
 - (v) content of any information transmitted through a VOW Data Feed may not be changed in any way from the content as provided by PropTx (VOW Data Feed Agreement, section 6.3(f));
 - (vi) VOW Data Feed must be refreshed not less than every 24 hours (VOW Data Feed Agreement, section 6.3(h));
 - (vii) the contact information of the Member operating the VOW must be clearly separate from the listings details for listings that are not retained by their brokerage specifically (VOW Data Feed Agreement, section 6.3(e));
- 21) Members are required to ensure that their VOW is password protected whereby only Consumers with a *bona fide* interest in the purchase, sale or leasing of real property have access to the VOW and the contents of the VOW (VOW Data Feed Agreement, ss. 6.3(k), 3.2, and 4.1);
- 22) Members must prominently display on each VOW that the website may only be used by Consumers that have a *bona fide* interest in the purchase, sale, or lease of real estate of the type being offered via the VOW, and that the data is deemed reliable but is not guaranteed accurate by PropTx (Recommended notice: “The information provided herein must only be used by consumers that have a bona fide interest in the purchase, sale or lease of real estate and may not be used for any commercial purpose or any other purpose.”) (VOW Data Feed Agreement, section 6.3(k));

- 23) Member VOW must obtain the identity of each Consumer accessing the VOW, including a valid email address (verified via email), and obtain each Consumer's agreement to Terms of Use (the minimum requirements of which are set out in [Appendix B](#)) (VOW Policy paragraph 7(a) and MLS Rules R-8.05(b));
- 24) Consumer passwords must be limited to 90 days, but VOW may provide a mechanism for renewal (VOW Policy paragraph 7(b) and MLS Rules R-8.06);
- 25) Member VOWs are required to implement security precautions and protocols against unauthorized access, data scraping by 3rd parties, and to impose appropriate session limits with inactivity timeouts (recommended to be set at 60 minutes) (VOW Data Feed Agreement, section 6.2(d) and MLS Rules R-8.13);
- 26) Members shall have protocols and mechanisms in place to identify and limit access to their VOW by commercial users and ensure that users are, in fact, *bona fide* consumers (MLS Rules R-8.09(b) and VOW Data Feed Agreement, ss. 3.2 and 4.1), such mechanisms and protocols should include:
- (i) systems to identify and exclude realtors from accessing member VOW (commercial use);
 - (ii) systems to verify users are *bona fide* consumers, such as follow up questionnaires and direct contact with frequent users;
 - (iii) tracking user access to identify suspicious activity and prospective commercial access, and to take follow up steps as warranted;
- 27) PropTx may impose further specific requirements on Member VOW to enforce compliance related to user access, and to implement protocols to ensure such compliance (VOW Policy paragraph 19 and VOW Data Feed Agreement, section 5.4);
- 28) Members are required to maintain an audit trail of all Consumer access to their VOW, and are required to provide all such information to PropTx upon request (VOW Policy paragraph 19 and VOW Data Feed Agreement, section 5.4);
- 29) PropTx has the right to audit all access to VOWs (MLS Rules R-8.08 and VOW Data Feed Agreement, section 5.4);
- 30) Members are obligated to make their VOW accessible to PropTx and its representatives to verify compliance, including being able to monitor VOW user

traffic (VOW Data Feed Agreement, section 5.2);

- 31) Members are required to display copyright notices in favour of PropTx and update these notices as published by PropTx (MLS Rules R-807 and VOW Data Feed Agreement s. 7.6);
- 32) Members cannot change any VOW content from that provided by the PropTx MLS® System (MLS Rules R-824 and VOW Data Feed Agreement s. 6.2(f));
- 33) A Member's VOW must not claim to provide full access to PropTx's MLS® System (VOW Data Feed Agreement section 6.3(j));
- 34) Members are required to comply with all requirements under PIPEDA and to post privacy policies that comply with these statutory obligations, as well as comply with requests to remove Personal Information from their VOWs (VOW Data Feed Agreement section 9.1, VOW Policy paragraph 14);
- 35) When a Consumer request is made to remove Personal Information from a Member VOW, the Member must comply and immediately advise PropTx and the listing brokerage so that the listing can be set to "do not display" on the PropTx's MLS® System (VOW Data Feed Agreement, section 9.1, and VOW Policy paragraph 14);
- 36) A Member VOW cannot display any listing where the listing has been directed not to be displayed even though contained in the PropTx VOW Data Feed (see **Appendix A** for more details) (VOW Data Feed Agreement, section 9.1, VOW Policy paragraph 14, and MLS Rules R-814(a));
- 37) A failure to comply with a request to remove Personal Information from a VOW in a timely manner, or displaying listing content set to not to be displayed, could result in a professional standards process being initiated against a Member and termination of Agreements with applicable AVP (VOW Data Feed Agreement, section 9.1, VOW Policy, section 14);
- 38) No VOW is permitted to display PropTx's MLS® listings dated earlier than 2003;
- 39) Members shall not allow any person or entity to gain access to or use the contents of the PropTx VOW data feed, share VOW data feeds, or share their access credentials to access the VOW data feeds or their content (VOW Data Feed Agreement, section 6.2(b));
- 40) Members and AVPs, are not permitted to merge PropTx's data feeds with any other data, create any derivative works (unless such derivative works are permitted if they are solely for the purpose of providing residential real estate

brokerage services), software applications, publish its content or otherwise seek to monetize or exploit PropTx's MLS® System content (VOW Data Feed Agreement, section 6.2(f)).

Archive Data

- 41) Archive Data is data that is older than 2 years, on a rolling basis, and is only available upon specific request by a member and by entering into an agreement with PropTx. Access to Archive Data is subject to the same rules, regulations and policies that apply to a VOW (VOW Policy paragraph 15);
- 42) Archive Data requests will only be approved for Members operating a fully compliant VOW (VOW Policy paragraph 15);
- 43) Archive Data access requests will only be approved upon receipt of an authenticated signature, or an official digital signature such as through DocuSign or Authentisign (VOW Policy paragraph 15);
- 44) See [Appendix A](#) for technical details on how to access the Archive Data and to obtain Request forms;

VOW Compliance Survey

- 45) Each current Member operating a VOW, and all AVPs operating VOWs on behalf of Members, will be required to complete an online Compliance Survey confirming their compliance with specific requirements relating to the operation of their VOWs. A failure to complete the survey, or to complete it in full, could result in a VOW Audit being conducted, and / or suspension of access (VOW Data Feed Agreement, section 5.2);
- 46) Each new application for a VOW, whether by an existing VOW operator, or for approval of a new VOW, will also trigger the requirement to complete the VOW Compliance Survey and a failure to complete the survey, or to complete it in full, will result in approval being delayed or denied (VOW Data Feed Agreement, section 5.2);
- 47) Members may also be required to complete the VOW Compliance Survey on an ad hoc basis, or upon any compliance issues being raised, which may also result in a VOW Audit being conducted (VOW Data Feed Agreement, ss. 5.2 and 5.4);

48) A copy of the current VOW Compliance Survey to be completed by Members and AVPs is attached at **Appendix C**.

Compliance Audits

49) PropTx staff will conduct visual audits of Member VOWs for compliance:

- (1) if a complaint is made by a Member,
- (2) if a compliance issue is discovered in a website by the same Member/AVP, or
- (3) as a random spot check (VOW Data Feed Agreement, section 5.4);

50) When a minor compliance issue is confirmed further to a visual audit, the Member is notified by email and is generally provided two business days to respond. Once the response is provided, PropTx staff generally work with the Member to achieve compliance, with a ten day period granted to make changes, which may be extended where warranted (VOW Data Feed Agreement, section 12.3);

51) If a compliance issue arises during the VOW application process, review, or audit, a comment may be added to the Member VOW record;

52) If at any point in the audit process issues arise as to compliance, or there is a continued violation, the matter will be referred to legal for further follow up (VOW Data Feed Agreement, section 12.3);

53) When any VOW or application for a VOW is referred to legal, no new or additional VOW/IDX feeds will be processed that relate to that Member or AVP until clearance is provided by legal (VOW Data Feed Agreement, section 12.3);

54) Where warranted, PropTx will invoke its right to conduct a full technical audit using an independent 3rd party technical auditor as PropTx's representative.

Appendix A

The VOW system (Syndication) is an implementation of the RESO Web API. The RESO Web API is a new, open-standards based data transport for the real estate industry, offering faster and more efficient data delivery. The RESO Web API is utilized for its improved technology and standardized data. The API supports web, mobile, and social applications, and uses open standards for long-term support. The Vow system provides access to **Current** (all active data and sales data for the past 2 years) Unavailable and Available data for users. **Current Data Access Condo and Freehold (only) – Available and Unavailable Data from the past 2 years; and Commercial active data only.** Access to listing image is available, up to 40 images per listing.

Access to all active Commercial MLS#s will also be included to ensure that your available commercial data is up to date. You will also have access to a 3 month Deleted MLS#s list to accommodate listings deleted from the system, their MLS status will appear as 'DELETED'. You will also have access to available and unavailable listings less than 2 years old (**Current Data**). Your daily access to Current Data will be to download both Available and Unavailable listings at the same time.

Access to unavailable data greater than two years old (**Archived Data**) will be provided via a separate API token based on approval of the VOW Archived Data Request and successful compliance audit of the Member's VOW. Users accessing Archived Data will have access to retrieve the archived data via an API token separate from their regular VOW token and will provide access to data from 2003 onward to a rolling time frame of 2 years prior to today.

Access is permitted to images that relate to Archived Data/listings and up to 20 images are available per listing; please be advised listings from 2003 to 2014 will have a maximum nine images (the system only allowed for up to nine images during that timeframe), and listings from 2014 to 2020 allow for up to 20 images, and listings from 2021 to current to have up to 40 images.

Vendor access will ONLY be provided via Vendor approval by PropTx Staff to access the PropTx Syndication system after they have their first Agreement completed.

The URL for access: <https://syndication.ampre.ca/>

Vendors will access via their user email address and will set up their own access password via the ACTIVATION link they receive upon completion of their first Agreement.

NOTE: Where a seller has directed the listing brokerage to withhold the seller's listing or property address from display on the Internet, Members and their Authorized VOW Partners are prohibited under the VOW Rules and Policies from displaying this information on their VOWs. The information will be included in your VOW Data Feed, but will contain a flag indicating no consent for online display.

The field Distribute to Internet Portals (internet) will contain a Y if it can be displayed on the internet and N if the seller has requested it not be. The field Display Address on Internet (disp_addr) will contain a Y if the address can be displayed on the internet and N if the seller has requested it not be then the following fields can not be displayed/mapped on the internet : Address (addr), Street Number (st_num), Street Name (st), Street Abbreviation (st_sfx), Street Direction (st_dir), Apt/Unit (apt_num and unit_num), Postal Code (zip), Legal Description (legal_desc), Map # (mmap_page), Map Column # (mmap_col), Map Row.

Appendix B

Minimum Terms of Use contents to be included in Member VOW as per PropTx's MLS® Rules and Policies.

A Member's VOW must obtain the identity of each Consumer and obtain each Consumer's agreement to Terms of Use of the VOW, as follows:

- (a) Consumers must provide their name and a valid email address. The Member must send an email to the address provided by the Consumer confirming that the Consumer has agreed to the Terms of Use (described in paragraph 7(c) below). The Consumer may be permitted to access the VOW only after the Member has verified that the email address provided is valid and that the Consumer agreed to the Terms of Use.
- (b) The Consumer must supply a username and a password, the combination of which must be different from those of all other Consumers on the VOW, before being permitted to search and retrieve Listing Information via the VOW. The username and password may be established by the Consumer or may be supplied by the Member, at the option of the Member. An email address may be associated with only one username and password. Consumers' passwords may be valid for up to 90 days, after which such passwords must be renewed or reconfirmed. The Member must, at all times, maintain a record of the name and email address supplied by the Consumer, and the username and current password of each Consumer. Such records must be kept for not less than 180 days after the expiration of the validity of the Consumer's password. If PropTx has reason to believe that a Member's VOW has been the cause of, or permitted a breach in, the security of the MLS® data or a violation of this VOW Policy, or the MLS® Rules and Policies (including the VOW Rules) related to use by one or more Consumers, the Member shall, upon request of PropTx, provide to PropTx a copy of the record of the name, email address, username, current password, and audit trail, if required, of any Consumer identified by PropTx to be suspected of involvement in the breach or violation.
- (c) The Consumer must be required to affirmatively express agreement to a "Terms of Use" agreement that requires the Consumer to open and review an agreement that provides at least the following:
 - (i) That the Consumer acknowledges entering into a lawful broker-consumer relationship with the Member.
 - (ii) That all MLS® data obtained from the VOW is intended only for the Consumer's personal, non-commercial use.
 - (iii) That the Consumer has a bona fide interest in the purchase, sale, or lease of real estate of the type being offered through the VOW.
 - (iv) That the Consumer will not copy, redistribute, retransmit, or otherwise use any of the data or Listing Information provided,



except in connection with the Consumer's consideration of the purchase, sale, or lease of an individual property.

- (v) That the Consumer acknowledges PropTx' s ownership of, and the validity of PropTx's proprietary rights and copyright in the MLS® database, MLS® data, PropTx's MLS® System, and Listing Information.
- (vi) That the Consumer will not, directly or indirectly, display, post, disseminate, distribute, publish, broadcast, transfer, sell or sublicense any Listing Information to another individual or entity. The prohibited uses expressly include "scraping" (including "screen scraping" and "database scraping"), "data mining" or any other activity intended to collect, store, re-organize, summarize or manipulate any Listing Information or any related data.
- (vii) After the Consumer has opened for viewing the Terms of Use agreement, a "mouse click" is sufficient to acknowledge agreement to those terms. The Terms of Use agreement may not impose a financial obligation on the Consumer or create any representation agreement between the Consumer and the Member.
- (viii) The Terms of Use agreement shall also expressly authorize PropTx, and other PropTx Members or their duly authorized representatives, to access the VOW for the purposes of verifying compliance with MLS® Rules and Policies (including the VOW Rules) and monitoring the display of Members' Listings by the VOW.
- (ix) Every VOW must display a privacy policy that boldly informs Consumers of, and obtains Consumers' consent to, all the ways in which Personal Information that they provide may be collected, used or disclosed, including the fact that Personal Information may be shared with PropTx for auditing and/or legal purposes.